



CHAPTER clxxvii.

An Act to confirm certain Provisional Orders made by the Board of Trade under the Electric Lighting Acts 1882 and 1888 relating to Ashford (Kent) Fly Ham Hexham Horley Keynsham (Somerset) Kingswood Newton Abbot (Extension) Teignmouth (Amendment) and Walton-upon-Thames. A.D. 1904.
[15th August 1904.]

WHEREAS under the authority of the Electric Lighting Acts 1882 and 1888 the Board of Trade have made the several Provisional Orders set out in the schedule to this Act: 45 & 46 Vict.
c. 56.
51 & 52 Vict.
c. 12.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Acts is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the several Provisional Orders made by the Board of Trade under the authority of the said Acts as set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Electric Lighting Orders Confirmation (No. 4) Act 1904. Short title.

2. The several Orders as amended and set out in the schedule to this Act shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and effect. Orders in
schedule
confirmed.

[Ch. clxxvii.] *Electric Lighting Orders Confirmation* [4 Edw. 7.]
(No. 4) Act, 1904.

A.D. 1904.

For pro-
tection of
Somerset
County
Council.

3.—(1) Nothing in the Keynsham (Somerset) Electric Lighting Order 1904 confirmed by this Act shall in any way limit or affect the powers of the Somerset County Council to rebuild alter widen or repair the structure of any bridge upon which any work by the Order authorised shall be constructed or impose upon the county council any liability which was not by law imposed upon them prior to the commencement of the Order.

(2) If at any time the county council require to carry out works for rebuilding altering widening or repairing any bridge which might involve interference with any portion of the undertaking by the Order authorised they shall prior to the commencement of such work give the Undertakers one month's notice of their intention to carry out such works and if in order to avoid interruption to the supply by the Undertakers of electrical energy it is in the opinion of the county council necessary to remove temporarily the mains and other electrical appliances belonging to the Undertakers from such bridge then the Undertakers shall and may at their own expense temporarily carry their cables and wires across such bridge overhead or at the side thereof in such a manner as will not be a danger or inconvenience to the public or unreasonably interfere with the works to be carried out by the county council and the county council shall not be required to pay compensation to the Undertakers for any loss or damage to which they may be put in consequence of the exercise of the powers of the county council or of the removal of such mains and appliances.

(3) When the rebuilding altering widening or repairing of such bridge shall have been completed the Undertakers shall have the same rights and powers with regard to such bridge as they had before the works were carried out.

(4) If any dispute arises between the county council and the Undertakers with regard to this section the same shall be determined by an arbitrator to be appointed on the application of either party by the Board of Trade.

SCHEDULE.

A.D. 1904.

LIST OF ORDERS.

1. ASHFORD (KENT).—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Ashford and District Electric Supply Company Limited.
2. ELY.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to Henry Foote Leonard Milne and Edward John Owen.
3. HAM.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Twickenham and Teddington Electric Supply Company Limited.
4. HEXHAM.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to Edwin Percy Harvey.
5. HORLEY.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to Marshall Handyside Bennett.
6. KEYNSHAM (SOMERSET).—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Keynsham Electric Light and Power Company Limited.
7. KINGSWOOD.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Kingswood Electric Supply Company Limited.
8. NEWTON ABBOT (EXTENSION).—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Urban Electric Supply Company Limited.
9. TEIGNMOUTH (AMENDMENT).—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Urban District Council of Teignmouth.
10. WALTON-UPON-THAMES.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Urban Electric Supply Company Limited.

[Ch. clxxvii.] *Electric Lighting Orders Confirmation* [4 EDW. 7.]
(No. 4) Act, 1904.

A.D. 1904.

ASHFORD (KENT) ELECTRIC LIGHTING.

Ashford. Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Ashford and District Electric Supply Company Limited in respect of the Urban District of Ashford in the County of Kent.

Short title. 1. This Order may be cited as the Ashford (Kent) Electric Lighting Order 1904.

Incorporation of Electric Lighting (Clauses) Act 1899. 2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.

Undertakers. 3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the Ashford and District Electric Supply Company Limited a company registered under the Companies Acts 1862 to 1900 whose registered office is situate at No. 17 Bank Street Ashford.

Repeal of Ashford (Kent) Electric Lighting Order 1899. 4. The Ashford (Kent) Electric Lighting Order 1899 is hereby repealed without prejudice to anything done or suffered thereunder.

Area of supply. 5. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

Power to break up streets. 6. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets not repairable by the local authority which are mentioned in the Second Schedule to this Order.

Compulsory works. 7. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order.

Maximum prices. 8. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.

Deposit. 9. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is two hundred and fifty pounds.

[4 EDW. 7.] *Electric Lighting Orders Confirmation* [Ch. clxxvii.]
(No. 4) Act, 1904.

10.—(1) The local authority may by twelve months' notice in writing require the Undertakers to sell and thereupon the Undertakers shall sell to them the undertaking authorised by this Order (including all lands buildings works plant machinery materials and apparatus suitable to and used by the Undertakers for the purposes of the undertaking and the goodwill thereof) upon the terms following (that is to say):—

A.D. 1904.
—
Ashford.
Purchase by
local authority.

(a) If the notice to purchase is given at the expiration of 21 28 or 35 years from the commencement of this Order the purchase price to be paid for the undertaking shall be the fair market value thereof as a going concern such value in default of agreement to be determined by arbitration:

(b) If the local authority exercise such right of purchase otherwise than as aforesaid or than under the powers conferred upon them by section 2 of the Electric Lighting Act 1888 the purchase price to be paid by them for the undertaking shall be such as shall be agreed solely between the Undertakers and the local authority.

(2) The Board of Trade may determine any question which arises with reference to the purchase under paragraph (a) of subsection (1) hereof which is not to be determined by arbitration and in default of agreement as to the date on which the purchase is to take effect may fix that date.

(3) From the date on which any such purchase takes effect the undertaking purchased shall vest in the local authority freed from all debts mortgages or other similar obligations of the Undertakers or attaching to the undertaking and the powers of the Undertakers in relation to the supply of electricity within the area of supply under this Order or the principal Act shall absolutely cease and determine and shall vest in the local authority and that authority shall subject to the provisions of this Order be the Undertakers for the purposes of this Order.

(4) The powers of purchase given by this section shall be in addition to and not in derogation of the power of the local authority to purchase under section 2 of the Electric Lighting Act 1888.

11. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

Commence-
ment of Order.

S C H E D U L E S.

FIRST SCHEDULE.

AREA OF SUPPLY.

The whole of the urban district of Ashford in the county of Kent as constituted at the commencement of this Order.

[Ch. clxxvii.] *Electric Lighting Orders Confirmation* [4 EDW. 7.]
(No. 4) Act, 1904.

A.D. 1904.

Ashford.

SECOND SCHEDULE.

List of Streets not repairable by the Local Authority which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

STREETS :—

Francis Road Bond Road Linden Road Rugby Gardens late Bridge Street Mabledon Avenue Jemmett Road road off south side of Victoria Road Beaver Road Dover Place Eastern Avenue Western Avenue Sackville Crescent Upper Queen's Road Queen's Road extension east side of Canterbury Road Cross Road between Albert and Queen's Road Elwick Lane Mace Cottages Norwood Gardens extension of Regent's Place approaches leading to Barrow Hill Row and Barrow Hill Terrace on south side of New Street Gasworks Lane the road over bridge in Beaver Road near the sewage pumping station the roads over the bridges across the railway of the South Eastern and London Chatham and Dover Railway Companies' Managing Committee (Chatham and Dover branch) in Godinton Road and Maidstone Road the roads under the bridges of the same railway in Chart Road and Gasworks Lane the roads over the bridges across the railway of the South Eastern and London Chatham and Dover Railway Companies' Managing Committee (main London to Dover line) at Chart Leacon Westwell Lane and in Beaver Road the roads under the bridges of the last-mentioned railway in Gasworks Lane the roads over the bridges across the Great Stour River and the East Stour River in Torrington Road Beaver Road and Hythe Road.

THIRD SCHEDULE.

List of Streets and parts of Streets throughout which the Undertakers are to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

Bank Street High Street Castle Street North Street Elwick Road Beaver Road from its intersection with Elwick Road to its intersection with Christchurch Road.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

[4 EDW. 7.] *Electric Lighting Orders Confirmation* [Ch. clxxvii.]
(No. 4) Act, 1904.

SECTION 1.

A.D. 1904.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units eleven shillings and eightpence and for each unit over twenty units sevenpence.

Ashford.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

ELY ELECTRIC LIGHTING.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to Henry Foote Leonard Milne and Edward John Owen (trading as the Southern District Electricity Corporation) in respect of part of the Urban District of Ely in the County of Cambridge.

Ely.

1. This Order may be cited as the Ely Electric Lighting Order 1904.

Short title.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.

Incorporation
of Electric
Lighting
(Clauses) Act
1899.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are Henry Foote Leonard Milne and Edward John Owen (trading as the Southern District Electricity Corporation) of 66 Victoria Street in the city of Westminster.

Undertakers.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

Area of supply.

5. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this

Compulsory
works.

[Ch. clxxvii.] *Electric Lighting Orders Confirmation* [4 EDW. 7.]
(No. 4) Act, 1904.

A.D. 1904. Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Second Schedule to this Order.

Ely.

Maximum prices.

6. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Third Schedule to this Order.

Powers not to be exercised unless undertaking transferred to a limited company.

7.—(1) The powers given by this Order shall not be exercised unless within six months or such extended period not exceeding in the whole twelve months as the Board of Trade allow after the commencement of this Order the Undertakers transfer the undertaking to a limited company registered under the Companies Acts 1862 to 1900 and approved by the Board of Trade for the purpose.

(2) Within that period the Undertakers may transfer and the company to whom the transfer is to be made may take a transfer of the undertaking with the consent of and on such terms and conditions as may be approved by the Board of Trade.

(3) On any such transfer the rights powers authorities obligations and liabilities of the Undertakers in respect of the undertaking shall be transferred to and may be exercised by and shall attach to the company to whom the transfer is made and that company shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

Purchase by local authority.

8.—(1) The local authority may at any time after the expiration of nine years from the commencement of this Order by one year's notice in writing require the Undertakers to sell and thereupon the Undertakers shall sell to them the undertaking authorised by this Order upon the terms of the payment by the local authority to the Undertakers of the fair market value of the undertaking as a going concern that value to be determined in default of agreement by arbitration.

(2) The Board of Trade may determine any question which arises with reference to the purchase which is not to be settled by arbitration and in default of agreement as to the date on which the purchase is to take effect may fix that date.

(3) From the date on which the purchase takes effect the undertaking shall vest in the local authority freed from all debts mortgages or other similar obligations of the Undertakers or attaching to the undertaking and the powers of the Undertakers in relation to the supply of electricity within the area of supply under this Order or the principal Act shall absolutely cease and determine and shall vest in the local authority who shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

(4) The power of purchase given by this section shall be in addition to and not in derogation of the power of the local authority to purchase under section 2 of the Electric Lighting Act 1888.

Deposit.

9. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is five hundred pounds.

10. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

A.D. 1904.
Ely.
Commence-
ment of Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

So much of the urban district of Ely in the county of Cambridge as is within a radius of three-quarters of a mile from the centre of the west gates of the Cathedral provided that in case of difference between the description in this schedule and the area as delineated on the deposited map the latter shall prevail.

SECOND SCHEDULE.

List of Streets and parts of Streets throughout which the Undertakers are to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

Back Hill The Gallery Minster Place High Street Fore Hill Broad Street St. Mary Street Silver Street Market Place Market Street The College and Egremont Street.

THIRD SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter:—

A.—(i) For lighting purposes—for any amount up to twenty units ten shillings and for each unit over twenty units sixpence; and

[Ch. clxxvii.] *Electric Lighting Orders Confirmation* [4 EDW. 7.]
(No. 4) Act, 1904.

A.D. 1904.

Ely.

(ii) For all other purposes—for any amount up to twenty units five shillings and for each unit over twenty units threepence; or

B at the option of the consumer—

For any amount not exceeding the equivalent of one hundred hours of supply at the maximum power which has been demanded by him—

(i) For lighting purposes at the rate of sevenpence per unit; and

(ii) For all other purposes at the rate of fourpence per unit;

And for any further quantity exceeding the equivalent of one hundred hours of supply at such maximum power—

(i) For lighting purposes at the rate of fourpence per unit; and

(ii) For all other purposes at the rate of twopence and one halfpenny per unit.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

HAM ELECTRIC LIGHTING.

Ham. Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Twickenham and Teddington Electric Supply Company Limited in respect of the Urban District of Ham.

Short title.

1. This Order may be cited as the Ham Electric Lighting Order 1904.

Incorporation
of Electric
Lighting
(Clauses) Act
1899.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.

Undertakers.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the Twickenham and Teddington Electric Supply Company Limited a company registered under the Companies Acts 1862 to 1898 whose registered office is at Broad Sanctuary Chambers Westminster.

Area of supply.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

[4 EDW. 7.] *Electric Lighting Orders Confirmation* [Ch. clxxvii.]
(No. 4) Act, 1904.

5. The street throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 is that mentioned in the Second Schedule to this Order.

A.D. 1904.
—
Ham.
Compulsory
works.

6. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Third Schedule to this Order.

Maximum
prices.

7.—(1) The local authority may if they think fit within six months after the expiration of a period of seven years from the commencement of this Order and within six months after the expiration of any subsequent period of seven years require the Undertakers to sell and thereupon the Undertakers shall sell to them the undertaking including all lands buildings works materials and plant suitable to and used by the Undertakers for the purpose of the Undertaking and the goodwill thereof at a price to be settled in default of agreement by arbitration.

Purchase by
local authority.

(2) The Board of Trade may determine any question which arises with regard to the purchase which is not to be settled by arbitration and in default of agreement as to the date on which the purchase is to take effect may fix that date.

(3) From the date on which the purchase takes effect the undertaking shall vest in the local authority freed from any debts mortgages or other similar obligations of the Undertakers or attaching to the undertaking and the powers of the Undertakers in relation to the supply of electricity under this Order or the principal Act shall absolutely cease and shall vest in that authority who shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

(4) The power of purchase given by this section shall be in addition to and not in derogation of the power of the local authority to purchase under section 2 of the Electric Lighting Act 1888.

8. Nothing in this Order shall authorise the Undertakers to interfere in any manner with the bed soil banks or shores of the River Thames or the navigation thereof or any towpath thereof (so far as it is not a street within the meaning of the Electric Lighting Act 1882) or affect in any manner the rights powers or privileges of the Conservators of the River Thames.

Saving for
River Thames.

9. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is two hundred and fifty pounds.

Deposit.

10. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

Commence-
ment of Order.

[Ch. clxxvii.] *Electric Lighting Orders Confirmation* [4 EDW. 7.]
(No. 4) Act, 1904.

A.D. 1904.

Ham.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The whole of the urban district of Ham as constituted at the commencement of this Order.

SECOND SCHEDULE.

Street throughout which the Undertakers are to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

Ham Street.

THIRD SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression “unit” shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter:—

i. (a) For any quantity not exceeding the equivalent of ninety-one hours of supply at the maximum power which has been demanded by him at the rate not exceeding sevenpence per unit;

(b) For any further quantity at the rate not exceeding threepence per unit; or

ii. At the option of the consumer for any amount up to twenty units ten shillings and for each unit over twenty units sixpence.

SECTION 2.

A.D. 1904.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

Ham.

HEXHAM ELECTRIC LIGHTING.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to Edwin Percy Harvey of Riverdale House Richmond in the County of Surrey in respect of the Urban District of Hexham and the Parishes of Acomb Sandhoe Hexham West Quarter and Warden in the Rural District of Hexham in the County of Northumberland.

Hexham.

1. This Order may be cited as the Hexham Electric Lighting Order 1904. Short title.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order. Incorporation of Electric Lighting (Clauses) Act 1899.

3. The Undertaker for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 is Edwin Percy Harvey of Riverdale House Richmond in the county of Surrey electrical engineer. Undertaker.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertaker and signed by an assistant secretary to the Board of Trade. Area of supply.

5. Subject to the provisions incorporated with this Order the Undertaker is specially authorised by this Order to break up the streets not repairable by the local authority which are mentioned in the Second Schedule to this Order. Power to break up streets.

6. The streets and parts of streets throughout which the Undertaker is to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order. Compulsory works.

[Ch. clxxvii.] *Electric Lighting Orders Confirmation* [4 Edw. 7.]
(No. 4) Act, 1904.

A.D. 1904.

Hexham.

Maximum
prices.

Powers not to
be exercised
unless under-
taking is trans-
ferred to a
registered
company.

7. The maximum prices which may be charged by the Undertaker as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.

8.—(1) The powers given by this Order shall not be exercised unless within six months or such extended period not exceeding in the whole twelve months as the Board of Trade allow after the commencement of this Order the Undertaker transfers the undertaking to a limited company registered under the Companies Acts 1862 to 1900 and approved by the Board of Trade for the purpose.

(2) Within that period the Undertaker may transfer and the company to whom the transfer is made may take a transfer of the undertaking with the consent of and on such terms and conditions as may be approved by the Board of Trade.

(3) On any such transfer the rights powers authorities obligations and liabilities of the Undertaker in respect of the undertaking shall be transferred to and may be exercised by and shall attach to the company to whom the transfer is made and that company shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

Deposit.

9. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is three hundred pounds in respect of the urban district of Hexham and one hundred pounds in respect of the parishes of Acomb Sandhoe Hexham West Quarter and Warden.

Commence-
ment of Order.

10. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The urban district of Hexham and the parishes of Acomb Sandhoe Hexham West Quarter and Warden all in the county of Northumberland as respectively constituted at the commencement of this Order.

SECOND SCHEDULE.

A.D. 1904.

Hexham.

List of Streets not repairable by the Local Authority which may be broken up by the Undertaker in pursuance of the special powers granted by this Order.

Such part or parts of Alemouth Road and the roads leading to Hexham railway station as are repairable by the North Eastern Railway Company and the roadway over the bridge over the North Eastern Railway at Hexham at the west side of Hexham Railway Station.

THIRD SCHEDULE.

List of Streets and parts of Streets throughout which the Undertaker is to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

Fore Street Market Place Beaumont Street Priestpottle Cattle Market Battle Hill and Hencotes.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertaker charges any consumer by the actual amount of energy supplied to him he shall be entitled to charge him at the following rates per quarter For any amount up to twenty units eleven shillings and eightpence and for each unit over twenty units sevenpence.

SECTION 2.

Where the Undertaker charges any consumer by the electrical quantity contained in the supply given to him he shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertaker under the Board of Trade regulations.

[Ch. clxxvii.] *Electric Lighting Orders Confirmation* [4 EDW. 7.]
(No. 4) Act, 1904.

A.D. 1904.

HORLEY ELECTRIC LIGHTING.

Horley. Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to Marshall Handyside Bennett in respect of the Parish of Horley in the Rural District of Reigate in the County of Surrey.

Short title. 1. This Order may be cited as the Horley Electric Lighting Order 1904.

Incorporation of Electric Lighting (Clauses) Act 1899. 2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.

Undertaker. 3. The Undertaker for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 is Marshall Handyside Bennett of The Chesnuts Horley in the county of Surrey electrical engineer.

Powers not to be exercised unless undertaking is transferred to named company or local authority. 4.—(1) The powers given by this Order shall not be exercised unless within six months or such extended period not exceeding in the whole twelve months as the Board of Trade allow after the commencement of this Order the Undertaker transfers the undertaking to the Horley Electricity Supply Company Limited or to the local authority.

(2) Within that period the Undertaker may transfer and the said company or the local authority may take a transfer of the undertaking with the consent of and on such terms and conditions as may be approved by the Board of Trade.

(3) On any such transfer the rights powers authorities obligations and liabilities of the Undertaker in respect of the undertaking shall be transferred to and may be exercised by and shall attach to the said company or local authority as the case may be and that company or local authority shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

Area of supply. 5. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertaker and signed by an assistant secretary to the Board of Trade.

Power to break up streets. 6. Subject to the provisions incorporated with this Order the Undertaker is specially authorised by this Order to break up the streets not repairable by the local authority which are mentioned in the Second Schedule to this Order.

Compulsory works. 7. The streets and parts of streets throughout which the Undertaker is to lay down suitable and sufficient distributing mains for the purposes of

[4 EDW. 7.] *Electric Lighting Orders Confirmation* [Ch. clxxvii.]
(No. 4) Act, 1904.

general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order. A.D. 1904.
Horley.

8. The maximum prices which may be charged by the Undertaker as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order. Maximum
prices.

9. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is two hundred and fifty pounds. Deposit.

10. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order. Commence-
ment of Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The whole of the parish of Horley in the rural district of Reigate in the county of Surrey as constituted at the commencement of this Order.

SECOND SCHEDULE.

List of Streets not repairable by the Local Authority which may be broken up by the Undertaker in pursuance of the special powers granted by this Order.

Ringley Avenue Chesnut Road North End Lumley Road Station Approach (down side) The Grove Haroldsley Road Moses Lane (Railway Station to Balcombe Road) New Road Meath Green.

THIRD SCHEDULE.

Street throughout which the Undertaker is to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

Station Road.

[Ch. clxxvii.] *Electric Lighting Orders Confirmation* [4 EDW. 7.]
(No. 4) Act, 1904.

A.D. 1904.

Horley.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule--

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertaker charges any consumer by the actual amount of energy supplied to him he shall be entitled to charge him at the following rates per quarter For any amount up to twenty units eleven shillings and eightpence and for each unit over twenty units sevenpence.

SECTION 2.

Where the Undertaker charges any consumer by the electrical quantity contained in the supply given to him he shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertaker under the Board of Trade regulations.

KEYNSHAM (SOMERSET) ELECTRIC LIGHTING.

*Keynsham
(Somerset).*

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Keynsham Electric Light and Power Company Limited in respect of the Parishes of Keynsham and Saltford in the Rural District of Keynsham in the County of Somerset.

Short title.

1. This Order may be cited as the Keynsham (Somerset) Electric Lighting Order 1904.

Incorporation
of Electric
Lighting
(Clauses) Act
1899.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.

Undertakers.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the Keynsham Electric Light and Power Company Limited being a company registered under the Companies Acts 1862 to 1900 with limited liability whose registered offices are situate at 28 Baldwin Street in the county of the city of Bristol.

[4 Edw. 7.] *Electric Lighting Orders Confirmation* [Ch. clxxvii.]
(No. 4) Act, 1904.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

A.D. 1904.
Keynsham
(Somerset).
Area of supply.

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets not repairable by the local authority which are mentioned in the Second Schedule to this Order.

Power to break
up streets.

6. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order.

Compulsory
works.

7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.

Maximum
prices.

8.—(1) The Undertakers shall within one year after the commencement of this Order remove any electric line placed by them above ground within the area of supply before that commencement (other than a service line necessarily placed above ground for the purposes of supply) unless the Board of Trade give their consent to the line remaining in position.

Removal of
overhead
wires.

(2) If the Undertakers fail to remove any electric line as required by this section they shall for each offence be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds and a court of summary jurisdiction may on complaint make an order authorising the removal of any such electric line by such person and on such terms as the court thinks fit.

9. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

Commence-
ment of Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The parishes of Keynsham and Saltford in the rural district of Keynsham as respectively constituted at the commencement of this Order.

[Ch. clxxvii.] *Electric Lighting Orders Confirmation* [4 EDW. 7.]
(No. 4) Act, 1904.

A.D. 1904.

SECOND SCHEDULE.

Keynsham
(Somerset).

List of Streets not repairable by the Local Authority which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

In the parish of Keynsham—Bristol Road High Street Station Road from its intersection with High Street to centre of bridge over River Avon Bath Hill Bath Road Dragon's Hill Charlton Park The Park Abbey Park Road road leading from Albert Road to Union Workhouse road leading from Bath Road to Manor House bridge over Great Western Railway Station Road.

In the parish of Saltford—Bath Road from boundary of Keynsham Parish to boundary of Newton St. Loe Parish.

THIRD SCHEDULE.

List of Streets and parts of Streets throughout which the Undertakers are to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

In the parish of Keynsham—High Street Dragon's Hill from the River Chew to the Pound Station Road from its intersection with High Street to the Railway Station.

In the Parish of Saltford—The road leading from the Working Men's Club to the Bird-in-Hand public house.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units eleven shillings and eightpence and for each unit over twenty units sevenpence.

SECTION 2.

A.D. 1904.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

Keynsham
(*Somerset*).

KINGSWOOD ELECTRIC LIGHTING.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Kingswood Electric Supply Company Limited in respect of the Urban District of Kingswood in the County of Gloucester. *Kingswood.*

1. This Order may be cited as the Kingswood Electric Lighting Order 1904. *Short title.*

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order. *Incorporation of Electric Lighting (Clauses) Act 1899.*

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the Kingswood Electric Supply Company Limited being a company registered under the Companies Acts 1862 to 1900 with limited liability whose registered offices are situate at All Saints' House Bristol. *Undertakers.*

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade. *Area of supply.*

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets not repairable by the local authority which are mentioned in the Second Schedule to this Order and the tramways which are also mentioned in that schedule. *Power to break up streets &c.*

6. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order. *Compulsory works.*

[Ch. clxxvii.] *Electric Lighting Orders Confirmation* [4 EDW. 7.]
(No. 4) Act, 1904.

A.D. 1904.

Kingswood.
Maximum
prices.

Deposit.

Commence-
ment of Order.

7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.

8. The sum to be deposited or secured in pursuance of section 5 of the Electric Lighting (Clauses) Act 1899 is five hundred pounds.

9. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The urban district of Kingswood as constituted at the commencement of this Order.

SECOND SCHEDULE.

List of Streets not repairable by the Local Authority and Tramways which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

(a) STREETS:—

Deanery Road Hill Street High Street Regent Street Hanham Street
Soundwell Road The Park.

(b) TRAMWAYS:—

The tramways of the Bristol Tramways and Carriage Company Limited.

THIRD SCHEDULE.

List of Streets and parts of Streets throughout which the Undertakers are to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

High Street Regent Street Hanham Road Downend Road Hanham Street.

FOURTH SCHEDULE.

A.D. 1904.

Kingswood.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand amperes flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter:—

- (a) For lighting purposes—For any amount up to twenty units eleven shillings and eightpence and for each unit over twenty units sevenpence:
- (b) For all other purposes—For any amount up to twenty units five shillings and for each unit over twenty units threepence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

NEWTON ABBOT (EXTENSION) ELECTRIC
LIGHTING.

*Provisional Order granted by the Board of Trade under the
Electric Lighting Acts 1882 and 1888 to the Urban Electric
Supply Company Limited in respect of part of the Urban
District of Newton Abbot.*

*Newton
Abbot.*

1. This Order may be cited as the Newton Abbot (Extension) Electric Lighting Order 1904. Short title.

2.—(1) The Newton Abbot Electric Lighting Order 1899 (herein-after called "the principal Order") and this Order shall be construed together as one Order and may be cited together as the Newton Abbot Electric Lighting Orders 1899 and 1904. Construction.

(2) The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 are not incorporated with this Order.

[Ch. clxxvii.] *Electric Lighting Orders Confirmation* [4 Edw. 7.]
(No. 4) Act, 1904.

- A.D. 1904. 3. Subject to the provisions of this Order there shall be added to the
Newton Abbot.
Area of supply. area of supply for the purposes of the principal Order the area which is
described in the First Schedule to this Order and is more particularly
delineated on the map deposited together with this Order at the Board of
Trade by the Undertakers and signed by an assistant secretary to the Board
of Trade.
- Compulsory
works. 4. Subject to the provisions of this Order there shall be added to
the list of streets and parts of streets mentioned in the Second Schedule
to the principal Order (being the streets and parts of streets throughout
which the Undertakers are to lay down suitable and sufficient distributing
mains for the purposes of general supply) the streets and parts of streets
mentioned in the Second Schedule to this Order.
- Power to break
up streets. 5. Subject to the provisions of this Order there shall be added to the
list of streets mentioned in the Third Schedule to the principal Order (being
streets not repairable by the local authority which may be broken up by the
Undertakers) the streets not repairable by the local authority mentioned in
the Third Schedule to this Order.
- Deposit. 6. The sum mentioned in section 7 of the principal Order as the sum to
be deposited or secured by the Undertakers shall be increased by the sum
of one hundred pounds which said last-mentioned sum shall be deposited
or secured in respect of so much of the area of supply as is added by
this Order.
- Application of
principal Order
to added area. 7. In the application of the provisions of the principal Order to
so much of the area of supply as is added by this Order the expression
"commencement of this Order" shall mean the day on which the Act
confirming this Order is passed.

S C H E D U L E S.

FIRST SCHEDULE.

AREA ADDED BY THIS ORDER TO THE AREA OF SUPPLY UNDER THE
PRINCIPAL ORDER.

So much of the urban district of Newton Abbot as constituted at the
commencement of this Order as is not included in the area of supply under
the principal Order.

SECOND SCHEDULE.

*List of Streets and parts of Streets throughout which the Undertakers are to
lay down suitable and sufficient Distributing Mains for the purposes of
general supply within a period of Two Years after the commencement
of this Order.*

Highweek Street Kingsteignton Road.

THIRD SCHEDULE.

A.D. 1904.

Newton
Abbot.

List of Streets not repairable by the Local Authority which by virtue of this Order may be broken up by the Undertakers in pursuance of the special powers granted by the principal Order.

1. Within the area proposed to be added by this Order—Cricket Field Terrace Elm Terrace Western Terrace Road Knowles Hill Road at back of "Lota" "East Park" and "Teign View" Abbotsbury Road Rock Terrace Scarborough Terrace Alexandra Villas Netley Terrace Road Coronation Road Polybanks Road Highpark Terrace Bradley Lane.

2. Within the area of supply comprised in the principal Order—Courtenay Road South Road College Road Decoy Road Vale Road Keyberry Park Station Cottages Road Teign Road Linden Terrace Powderham Road Powderham Terrace road from Courtenay Road to South Road Salem Place Buller Road Hillman's Road No. 2 Court East Street No. 4 Court East Street No. 10 Court East Street No. 11 Court East Street No. 1 Court Wolborough Street No. 3 Court Wolborough Street No. 8 Court Wolborough Street Sun Court roads over railway bridges in Kingsteignton Road and Torquay Road.

TEIGNMOUTH ELECTRIC LIGHTING.

Provisional Order granted by the Board of Trade under the Teignmouth. Electric Lighting Acts 1882 and 1888 to the Urban District Council of Teignmouth amending the Teignmouth Electric Lighting Order 1899.

1. This Order may be cited as the Teignmouth Electric Lighting Short title.
(Amendment) Order 1904.

2. Except as is by this Order otherwise provided the Teignmouth Principal
Electric Lighting Order 1899 (herein-after called "the principal Order") and Order and this
this Order shall be read and construed together as one Order and may be read and
cited together as the Teignmouth Electric Lighting Orders 1899 and 1904. construed as
one Order.

3. The provisions contained in the schedule to the Electric Lighting Exception of
(Clauses) Act 1899 are not incorporated with this Order. (Clauses) Act
1899.

4. The date from which the periods of two years and eighteen months Extension of
are respectively to be reckoned for the purposes of section 18 of the principal periods for
Order shall be the commencement of this Order. compulsory
works.

5. At any time within one year after the commencement of this Order Power to
the Teignmouth Urban District Council being the Undertakers for the pur- transfer.
poses of the principal Order as amended by this Order may with the consent

[Ch. clxxvii.] *Electric Lighting Orders Confirmation* [4 EDW. 7.]
(No. 4) Act, 1904.

A D. 1904. of and upon such terms and conditions as may be approved by the Board
Teignmouth. of Trade transfer the undertaking authorised by the principal Order as
so amended to Messrs. Crompton and Company Limited whose registered
office is at Salisbury House London Wall in the city of London and on such
transfer being made the rights powers authorities obligations and liabilities of
the Undertakers in respect of the undertaking shall be transferred to and
may be exercised by and shall attach to the transferees who shall subject to
the provisions of the principal Order as amended by this Order become the
Undertakers for the purposes of the principal Order as so amended.

Power to break 6. Subject to the provisions of this Order there shall be added to the
up streets not list of streets mentioned in the Third Schedule to the principal Order (being
repairable by streets not repairable by the local authority which may be broken up by the
local authority. Undertakers) the streets not repairable by the local authority specified in the
schedule to this Order.

Commence- 7. This Order shall come into force upon the day when the Act con-
ment of Order. firming this Order is passed which date is in this Order referred to as the
commencement of this Order.

S C H E D U L E.

*List of Streets not repairable by the Local Authority which the Undertakers
may break up in addition to those specified in the Third Schedule to the
Principal Order.*

The roads (unnamed) on the Bitton Estate Ferndale Road the road
(unnamed) leading out of Ferndale Road Speranza Grove Barnpark Terrace
Paradise Road the private road (unnamed) off Buckeridge two drives (or
private roads) leading out of Dawlish Road the road leading from Shaldon
Bridge approach to the shore on the Teignmouth side of the River Teign.

WALTON-UPON-THAMES ELECTRIC LIGHTING.

Walton-upon- *Provisional Order granted by the Board of Trade under the
Thames. Electric Lighting Acts 1882 and 1888 to the Urban Electric
Supply Company Limited in respect of the Urban District of
Walton-upon-Thames.*

Short title. 1. This Order may be cited as the Walton-upon-Thames Electric
Lighting Order 1904.

Incorporation 2. The provisions contained in the schedule to the Electric Lighting
of Electric (Clauses) Act 1899 (with the exception of sections 83 and 84 of that
Lighting schedule) are incorporated with and form part of this Order.
(Clauses) Act 1899.

[4 Edw. 7.] *Electric Lighting Orders Confirmation* [Ch. clxxvii.]
(No. 4) Act, 1904.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the Urban Electric Supply Company Limited a company registered under the Companies Acts 1862 to 1900 whose registered office is at Broad Sanctuary Chambers Westminster.

A.D. 1904.
Walton-upon-Thames.
Undertakers.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

Area of supply.

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets not repairable by the local authority which are mentioned in the Second Schedule to this Order.

Power to break up streets.

6. The streets and parts of streets through which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order.

Compulsory works.

7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.

Maximum prices.

8.—(1) The local authority may by notice in writing given within six months after the expiration of a period of seven fourteen twenty-one or twenty-eight years from the commencement of this Order or by twelve months' notice in writing given at any time after the expiration of twenty-eight years and six months but within thirty-five years from that date require the Undertakers to sell and thereupon the Undertakers shall sell to them the undertaking authorised by this Order (including all lands buildings works materials and plant suitable to and used for the purposes of the undertaking) upon the terms of the payment by the local authority to the Undertakers of an amount equal to the capital properly expended upon the undertaking exclusive of the costs charges and expenses of obtaining this Order and of any amount necessary to put the undertaking into proper condition and repair with the addition if the option is exercised after the seven fourteen or twenty-one year periods of fifteen ten or five per cent. as the case may be upon so much of the purchase price so calculated as represents capital expended at the date of the notice otherwise than in the purchase or acquisition of land.

Purchase by local authority.

(2) The amount payable on a purchase of the undertaking under this section shall be determined in default of agreement by arbitration and the Board of Trade may determine any question which arises with reference to the purchase which is not to be settled by arbitration and in default of

[Ch. clxxvii.] *Electric Lighting Orders Confirmation* [4 EDW. 7.]
(No. 4) Act, 1904.

A.D. 1904. agreement as to the date on which the purchase is to take effect may fix that date.

Walton-upon-Thames.

(3) From the date on which the purchase takes effect the undertaking so purchased shall vest in the local authority freed from any debts mortgages or other similar obligations of the Undertakers or attaching to the undertaking and the powers of the Undertakers in relation to the supply of electricity under this Order or the principal Act within the area of supply shall absolutely cease and shall vest in the local authority who shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

(4) In lieu of the period of forty-two years mentioned in section 2 of the Electric Lighting Act 1888 there shall be substituted the period of thirty-five years and for the purposes of a purchase by the local authority under that section the value of the undertaking shall be calculated without regard to any loss occasioned by severance.

Revision of prices to be charged by local authority.

9. In the event of the undertaking being purchased or acquired by the local authority the following provisions shall apply and have effect (that is to say) :—

(1) The Undertakers shall so soon as the annual statement of accounts of the undertaking under this Order has been filled up in the form prescribed by the Board of Trade under the Electric Lighting Act 1882 publish in a newspaper circulating in the area of supply a notification that such statement of accounts has been filled up and that copies of it can be obtained at the offices of the local authority at a price not exceeding one shilling a copy and such publication shall be in addition to and not in substitution for any publication prescribed by the Board of Trade under the Electric Lighting Act 1882 :

(2) The local authority shall on the expiration of the third complete financial year after they have commenced to supply electrical energy under this Order and on the expiration of each third succeeding year reconsider and if necessary revise and thereafter maintain the scales of prices charged for electrical energy under this Order so that (so far as is reasonably practicable) no rate will be required for the purpose of defraying the future expenses of the said undertaking during the next three years Provided nevertheless that—

(a) the prices to be charged shall not exceed the maximum prices which may be charged under this Order ;

(b) the scales of prices so reconsidered and revised may be from time to time in like manner reconsidered and revised by the local authority :

(3) Nothing in this section contained shall prevent the local authority from entering into contracts for periods which may extend beyond the periods at which any revision may take place under

[4 EDW. 7.] *Electric Lighting Orders Confirmation* [Ch. clxxvii.]
(No. 4) Act, 1904.

the provisions of this section on special terms under special circumstances not applicable to ordinary consumers but each such contract shall provide that the price to be charged for energy supplied under such contract shall either—

A.D. 1904.
Walton-upon-Thames.

(a) be subject to revision at the next triennial revision provided for in this section; or

(b) vary in the same proportion as the prices charged to ordinary consumers:

Provided that the local authority shall not without their consent be required to accept any price lower than the minimum price mentioned in such contract:

- (4) There shall not be made against the general district rate or any other rate levied within the urban district of Walton-upon-Thames for energy used by the local authority for street lighting or any other purpose a charge at a higher price than that charged to consumers using energy for similar purposes and for the like hours of supply.

10. Nothing in this Order shall authorise the Undertakers to interfere in any manner with the bed soil banks or shores of the River Thames or the navigation thereof or any towpath thereof (so far as it is not a street within the meaning of the Electric Lighting Act 1882) or affect in any manner the rights powers or privileges of the Conservators of the River Thames.

Saving for
River Thames.

11. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is five hundred pounds.

Deposit.

12. The Walton-upon-Thames Electric Lighting Order 1903 is hereby revoked without prejudice to anything done or suffered thereunder.

Revocation of
Walton-upon-Thames Electric
Lighting Order
1903.

13. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

Commence-
ment of Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The whole of the urban district of Walton-upon-Thames as constituted at the commencement of this Order.

[Ch. clxxvii.] *Electric Lighting Orders Confirmation* [4 Edw. 7.]
(No. 4) Act, 1904.

A.D. 1904.

SECOND SCHEDULE.

*Walton-upon-
Thames.*

List of Streets not repairable by the Local Authority which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

(a) STREETS :—

In the Walton Ward of the said district—

New Road Russell Road Cottimore Lane Florence Road Miskins Road
Sydney Road Esher Avenue Churchfield Road (Sydney Park Estate)
Bowes Road Crutchfield Road Crutchfield Lane Hurst Grove Mayo
Road Vicarage Place Osborne Road road at back of Mr. Parson's
premises Bridge Street Ashley Park Road road at the back of the
Broadway Halfway Green Road Cross Road.

In the Hersham Ward of the said district—

Arch Lane Rydens Grove Primrose Road Faulkners Row Mills Road
Snellings Road Messieurs Harris' new roads Green Lane Burwood
Park Road two new roads on the Weymouth Park Estate Old
Avenue Gower Road Bridgewater Road Ellesmere Road St. George's
Avenue Egerton Road St. George's Square Felcot Road Bakerlee
Lane Mud Town Lane.

In the Oatlands Ward of the said district—

The private road leading to Nutcombe House America Road Beechwood
Avenue Church Road the private road leading to Stratford Lodge
Castle Road Vale Road Woodlands Road.

The subway under the London and South Western Railway at the
northern end of Arch Road.

Roads under railway bridges at end of Esher Road and in Broad Lane.

Roads over railway bridges in Queen's Road and Station Road.

THIRD SCHEDULE.

List of Streets and parts of Streets throughout which the Undertakers are to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

St. George's Road Bridgewater Road Ellesmere Road Old Avenue
Egerton Road Queen's Road America Estate Roads St. Mary's Road Ashey
Road Station Avenue Oatlands Chase Road Castle Road High Street Oatlands
Drive Church Street Thames Street Chapel Street Station Road South
Terrace Road Sydney Road Bowes Road Rydens Road Esher Road Felcot
Road Felcot Lane Burwood Park Road West Grove.

FOURTH SCHEDULE.

A.D. 1904.

Walton-upon-
Thames.

MAXIMUM PRICES.

In this schedule—

The expression “unit” shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter :—

A.—For Lighting.

- (1) For any quantity not exceeding the equivalent of ninety-one hours of supply at the maximum power which has been demanded by him at the rate of sevenpence per unit :
- (2) For any further quantity at the rate of threepence per unit.

B.—For other Purposes.

- (3) For any amount not exceeding the equivalent of ninety-one hours of supply at the maximum power which has been demanded by him at the rate of fourpence per unit :
- (4) For any further quantity at the rate of one penny and one half-penny per unit.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

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